

functions. This was the settled law of England and is similarly accepted in this country. Bradley v. Fisher, 13 Wall. 335, 80 U.S. 335, 20 L.Ed. 646 (1871).

B. The passage of the Federal Civil Rights Act did not abrogate this traditional immunity. Pierson v. Ray, 386 U.S. 547, 87 S.Ct.1213, 80 L.Ed.2d 288 (1967).

C. An exception to the rule of judicial immunity exists which is founded upon a distinction between excess of jurisdiction and the absence of all jurisdiction. Bradley v. Fisher, supra. Where there is jurisdiction over the subject-matter and the person there is immunity, and even though a judge acts in excess of his jurisdiction the immunity remains.

D. Where the act is done in the clear absence of all jurisdiction and this is known to the judge, there is no immunity. Cf. Rhodes v. Houston, 202 F.Supp. 624 (D.C. Nebr. 1962)

"Jurisdiction" to hear Defendant Ora McFarlin's petition was present in the DeKalb Circuit Court by virtue of the broad jurisdictional powers conferred upon it. Judge Eschbach, after recognizing that the Circuit Courts of Indiana are courts of general jurisdiction having "original, exclusive jurisdiction in all cases at law and equity whatsoever," found "there is jurisdiction (emphasis added) in such a court to hear petitions for tubal ligation (by implication, citing A.L. v. G.R.H. 325